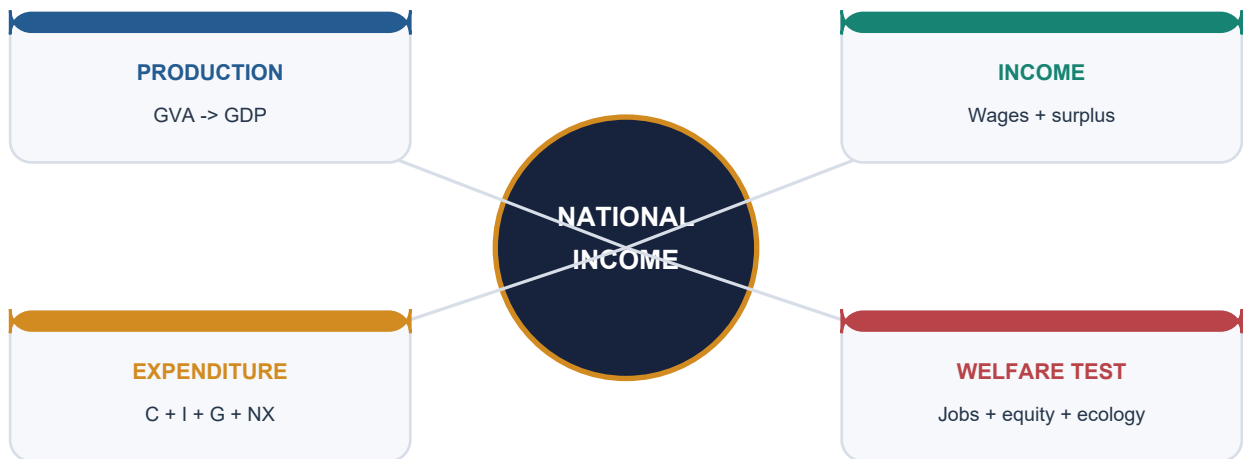


Polity 42 — Anti-Defection Law

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Deterministic fallback visual: national income viewed through production, income, expenditure and welfare lenses.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 42 — Anti-Defection Law

Complete independent learning session + verified PYQ routing + solved practice workbook + final consolidated register notes

Legal/current control date: 20 August 2026 (Asia/Kolkata)

Tag key: [FACT] = supported by a named constitutional, statutory, official, judicial or audited local source; [ANALYSIS] = reasoned examination; [CURRENT] = checked against official material for the control date; [LIMIT] = qualification, unresolved issue or deliberately unfrozen fact. **Answer-writing discipline:** claim -> named evidence -> analysis -> qualification.

How to Use This Package

[FACT] Local sources were read first: Polity/basic/Anti-Defection-Law.md, Polity/advanced/42_Anti-Defection-Law.md, the related Parliament, State Legislature, political-party, Election Commission and constitutional-amendment owners, and all available Prelims/Mains routing and PYQ-integration ledgers.

[FACT] The OCR-searchable local edition of *Indian Polity* was then checked for the Tenth Schedule chapter, grounds, exceptions, presiding-officer procedure, evaluation and the 91st Amendment.

[CURRENT] The legal control set was checked against the Legislative Department's **Constitution of India as on 1 May 2026**, the official 52nd and 91st Amendment texts, official Supreme Court judgments in *Kihoto Hollohan*, *Keisham Meghachandra Singh*, *Shrimanth Balasaheb Patil*, *Subhash Desai* and the 31 July 2025 Telangana defection matter, and official Lok Sabha/Rajya Sabha procedural material.

[LIMIT] The package does not freeze current legislators, party factions, government survival, symbol ownership or the final outcome of reported pending litigation. Reports of a 2026 challenge to the merger exception are noted only as reported litigation because no later official merits order fixing its procedural posture was independently verified. No later contempt warning in the Telangana matter is claimed.

Visual 01 — Learning Roadmap

HISTORY AND AMENDMENTS

1967 instability -> 52nd Amendment -> Tenth Schedule -> 91st Amendment

|

v

PARAGRAPH MAP

definitions -> grounds -> omitted split -> merger -> exemption
-> decision -> court-bar text -> rules

|

v

THREE MEMBER TYPES + PARTY / LEGISLATURE-PARTY DISTINCTION

|

v

SPEAKER PROCESS -> NATURAL JUSTICE -> JUDICIAL REVIEW

|

v

MERGER / WHIP / RESIGNATION / NABAM REBIA / SUBHASH DESAI

|

v

CONSEQUENCES + COMPARISONS + CRITIQUE + REFORM

|

v

VERIFIED PYQs -> 36 MCQs -> 12 REMEDIALS -> 8 ORIGINAL MAINS

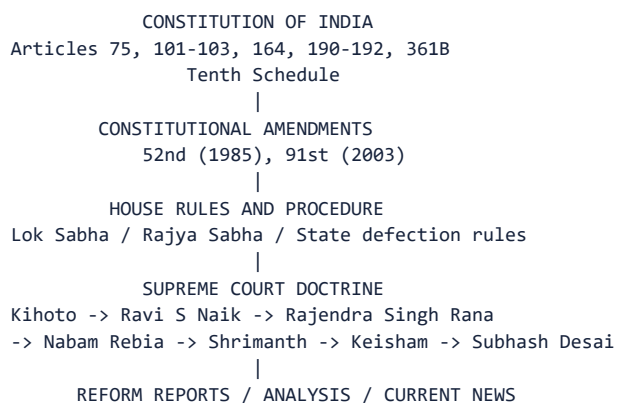
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FINAL CONSOLIDATED REGISTER NOTES

Caption: The topic moves from exact constitutional text to institutional incentives and answer-writing control.

Visual 02 — Source-Control Pyramid



Caption: News cannot alter the bare text; a proposal cannot be written as enacted law.

1. The Constitutional Problem: Stability Without Legislative Servitude

[FACT] The Tenth Schedule creates a constitutional ground of disqualification for defection. It operates through Articles **102(2)** and **191(2)** for Parliament and State legislatures respectively.

[ANALYSIS] Its central bargain is difficult: a parliamentary government needs party cohesion to survive, but a representative legislature also needs deliberation, dissent and constituency accountability.

[LIMIT] The law does not create criminal liability for changing political allegiance. It concerns continued membership of the House and linked constitutional office disabilities.

Visual 03 — The Core Constitutional Tension

Stability interest	Deliberative interest	Constitutional challenge
government must retain majority	member should scrutinise policy	define when party discipline justifies loss of seat
mandate should not be traded	dissent can improve legislation	separate principled dissent from opportunistic defection
floor-crossing can topple ministries	every vote need not test survival	avoid converting every issue into a confidence vote
party label shapes voter choice	member also represents constituency	balance party mandate and representative judgment

Caption: Anti-defection is not simply “party versus member”; it is stability versus accountable representation.

Visual 04 — Safe One-Sentence Definition

ANTI-DEFECTON LAW =
constitutional disqualification under the Tenth Schedule
for specified party-switching or direction-defying conduct,
decided initially by the House's presiding officer,
subject to judicial review.

Caption: This definition identifies source, grounds, decider and review without overstating the law.

2. Bounded History: From “Aaya Ram, Gaya Ram” to Constitutional Design

[FACT] The expression “Aaya Ram, Gaya Ram” became associated with rapid party-switching in Haryana politics in 1967. It is a political-memory anchor for the wider instability produced by frequent defections after the Fourth General Election.

[FACT] *Kihoto Hollohan* records the 8 December 1967 Lok Sabha resolution seeking a high-level Committee on Defections and quotes the Committee's 1969 report on extensive post-election changes of allegiance and the lure of office.

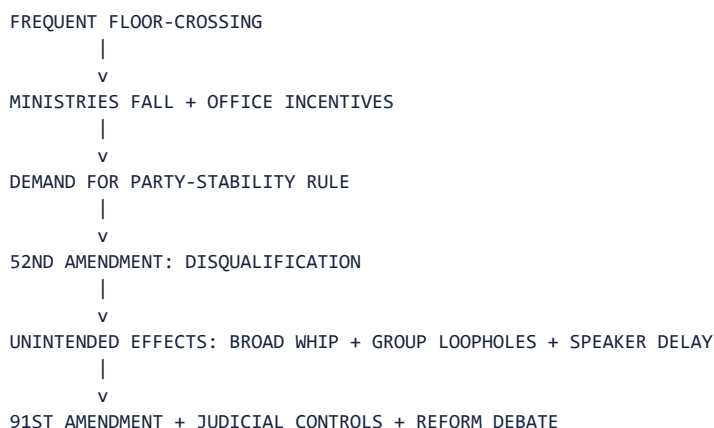
[LIMIT] The phrase is not the legal source of the Tenth Schedule. An answer should use it briefly, then move to the 52nd Amendment and exact provisions.

Visual 05 — Evolution Timeline

Date	Development	Exam significance
1967	major wave of State-level defections; “Aaya Ram, Gaya Ram” political shorthand	background mischief
8 Dec 1967	Lok Sabha resolution for a Committee on Defections	institutional response begins
7 Jan 1969	Committee on Defections report	documented instability and office incentives
15 Feb 1985	52nd Amendment Act dated/enacted	constitutional insertion authorised
1 Mar 1985	52nd Amendment and Tenth Schedule brought into force	operative commencement
18 Feb 1992	<i>Kihoto Hollohan</i> judgment	Schedule substantially upheld; para 7 invalid
1 Jan 2004	91st Amendment changes effective	split defence removed; office bars strengthened

Caption: Distinguish the Act's date from the date on which the 52nd Amendment came into force.

Visual 06 — History-to-Design Chain



Caption: The law reduced one form of instability but generated new institutional incentives.

3. The 52nd Amendment: Creation, Articles and Commencement

[FACT] The Constitution (Fifty-second Amendment) Act, 1985 amended Articles **101**, **102**, **190** and **191** and inserted the **Tenth Schedule**.

[FACT] The official consolidated Constitution records the Tenth Schedule as effective from **1 March 1985**. The Amendment Act itself is dated **15 February 1985** and authorised commencement by Central Government notification.

[ANALYSIS] Articles 101 and 190 connect disqualification with vacancy of seats; Articles 102 and 191 create the substantive constitutional disqualification route.

Visual 07 — Four-Article Link

Article	House level	Function after 52nd Amendment
101	Parliament	vacation of seat includes Article 102(2) disqualification
102(2)	Parliament	disqualification under Tenth Schedule
190	State Legislature	vacation of seat includes Article 191(2) disqualification
191(2)	State Legislature	disqualification under Tenth Schedule

Caption: Articles 102/191 create the ground; Articles 101/190 connect the ground to seat vacancy.

Visual 08 — Date Control Card

52ND AMENDMENT

Act date: 15 February 1985

Operative Tenth Schedule: 1 March 1985

91ST AMENDMENT

Act called: Constitution (Ninety-first Amendment) Act, 2003

Assent / Gazette date: 1 January 2004

Tenth Schedule changes effective: 1 January 2004

Caption: “1985” and “2003” identify the Acts; commencement still requires precise control.

4. The 91st Amendment: What Changed and What Did Not

[FACT] The Constitution (Ninety-first Amendment) Act, 2003 omitted paragraph 3 of the Tenth Schedule and adjusted paragraphs 1 and 2 accordingly, with effect from 1 January 2004.

[FACT] It inserted Articles **75(1A)**, **75(1B)**, **164(1A)**, **164(1B)** and **361B**. These provisions cap ministry size and create ministerial/remunerative-political-post disabilities for members disqualified under paragraph 2.

[LIMIT] The 91st Amendment did not replace the Speaker with the Election Commission, create a general time limit, or restrict whips to confidence votes.

Visual 09 — 91st Amendment Architecture

Change	Provision	Effect
Union ministry cap	Article 75(1A)	total ministers including PM not above 15% of Lok Sabha
Union defector-minister bar	Article 75(1B)	office disability after paragraph 2 disqualification
State ministry cap	Article 164(1A)	not above 15% of Assembly; minimum 12
State defector-minister bar	Article 164(1B)	office disability after paragraph 2 disqualification
remunerative political post bar	Article 361B	separate constitutional disability
split defence deleted	Tenth Schedule paragraph 3 omitted	one-third split no longer protects

Caption: The 91st Amendment attacked both the split loophole and the reward structure of defection.

Visual 10 — 52nd versus 91st

Question	52nd Amendment	91st Amendment
main role	created anti-defection framework	tightened it
Schedule effect	inserted Tenth Schedule	omitted paragraph 3
article focus	101, 102, 190, 191	75, 164, 361B plus Schedule edits
office incentives	no specific new defector-office bar	minister/remunerative-post bars
common trap	called an ordinary Anti-Defection Act	confused with creation of ministry cap

Caption: Creation belongs to the 52nd; tightening and office disabilities belong to the 91st.

5. Exact Paragraph Map of the Tenth Schedule

[FACT] The current Schedule retains paragraphs 1, 2 and 4-8. Paragraph 3 appears as omitted in the official text.

Visual 11 — Paragraph-by-Paragraph Map

Paragraph	Subject	High-yield control
1	interpretation	House, legislature party, original political party
2	disqualification	party member, independent, nominated
3	omitted	former one-third split defence
4	merger	original political party + two-thirds deeming rule
5	presiding-officer exemption	exact listed offices and rejoining conditions
6	decision	Speaker/Chairman; special route if the presiding officer is concerned
7	textual bar of courts	printed text survives; paragraph invalid under <i>Kihoto</i>
8	rules	records, reports, admission, procedure and laying

Caption: Paragraph 7 remains printed, but its constitutional legal effect is controlled by Kihoto.

Visual 12 — Schedule Logic

WHO IS THE MEMBER? -> paragraph 1 definitions
 |
 WHAT CONDUCT OCCURRED? -> paragraph 2
 |
 IS A DEFENCE CLAIMED? -> paragraph 4 or paragraph 5
 |
 WHO DECIDES? -> paragraph 6
 |
 WHAT PROCEDURE? -> paragraph 8 + House rules + natural justice
 |
 WHAT COURT CONTROL? -> Kihoto / later cases

Caption: Every problem question should be solved in this order.

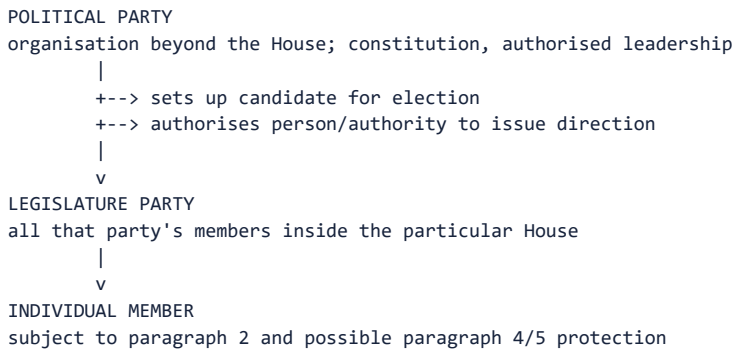
6. Definitions: Political Party, Legislature Party and Original Political Party

[FACT] A **legislature party** is the group of all members of that House who belong to a political party under the Schedule.

[FACT] An **original political party**, in relation to a member, is the political party to which that member belongs for paragraph 2(1).

[FACT] An elected party member is deemed to belong to the political party that set the member up as a candidate.

Visual 13 — Three-Level Party Map



Caption: The legislature party is the House-level group; it is not the whole political party.

Visual 14 — Political Party versus Legislature Party

Dimension	Political party	Legislature party
location	organisational/electoral entity	group within a House
Tenth Schedule role	candidate-setting, membership, direction, merger reference	headcount and House grouping
whip after <i>Subhash Desai</i>	appoints/authorises Whip and Leader	cannot replace party authority by factional vote
paragraph 4	“original political party” is the reference point	two-thirds agreement creates statutory deeming issue
ECI relation	may be party in Symbols Order dispute	numerical support is evidence, not automatic ownership

Caption: The 2025 Prelims route tests this exact distinction.

Visual 15 — Why “Political Party” Is Explicit

ELECTION TICKET -> deemed party belonging
PARTY MEMBERSHIP -> paragraph 2(1)(a)
PARTY DIRECTION -> paragraph 2(1)(b)
ORIGINAL PARTY -> paragraph 4
PARTY REPORTS -> paragraph 8

Therefore:
the Schedule is not merely about a temporary group of legislators.

Caption: “Political party” is structurally central across the Schedule, not an incidental phrase.

7. Ground One: Voluntarily Giving Up Membership

[FACT] Paragraph 2(1)(a) disqualifies a party member who has **voluntarily given up membership** of the political party.

[FACT] *Ravi S. Naik v. Union of India* holds that the phrase is wider than formal resignation; an inference may be drawn from conduct.

[ANALYSIS] The inquiry asks whether conduct, taken as a whole, objectively communicates abandonment of party allegiance. A single disagreement or speech should not mechanically be equated with departure.

[LIMIT] The law does not supply an exhaustive conduct checklist. Context, evidence, party constitution, communications and procedural fairness matter.

Visual 16 — Conduct-Inference Ladder

FORMAL RESIGNATION FROM PARTY

-> strongest direct evidence

PUBLICLY JOINING / ACCEPTING ANOTHER PARTY'S POSITION

-> strong conduct evidence

SUSTAINED ACTION AGAINST OWN PARTY + RIVAL ALIGNMENT

-> possible inference; examine context

ONE SPEECH / POLICY CRITICISM / INTERNAL DISSENT

-> not automatically voluntary giving up

Caption: The phrase is wider than resignation, but it is not a licence to punish every disagreement.

Visual 17 — Evidence Checklist for Paragraph 2(1)(a)

Evidence	What it may show	Qualification
resignation letter	express relinquishment	authenticity and timing matter
public declaration	intended abandonment	read full statement, not isolated phrase
rival-party membership/action	changed allegiance	require reliable proof
conduct during government formation	alignment against party	distinguish from legitimate procedural act
party expulsion	party's act, not member's voluntary act	expulsion alone is not the paragraph 2(1)(a) ground
later conduct after expulsion	joining/acting with another party	<i>G. Viswanathan</i> deeming principle becomes relevant

Caption: The Speaker adjudicates evidence, not political labels alone.

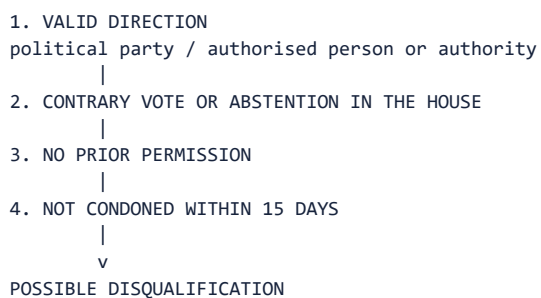
8. Ground Two: Voting or Abstaining Contrary to Direction

[FACT] Paragraph 2(1)(b) requires a direction issued by the political party, or by a person/authority authorised by it; voting or abstention contrary to that direction; absence of prior permission; and no condonation within **15 days**.

[FACT] The text covers both **voting** and **abstaining**.

[LIMIT] The law does not say that every speech, committee intervention, public disagreement or policy criticism is itself a whip breach.

Visual 18 — Four-Element Whip Test



Caption: Missing any textual element defeats the paragraph 2(1)(b) route.

Visual 19 — Dissent versus Defection

Conduct	Tenth Schedule position
criticising a Bill in debate	not by itself a paragraph 2(1)(b) breach
voting contrary to a valid direction	ground may arise
abstaining contrary to direction	ground may arise
prior permission obtained	textual protection
contrary vote later condoned within 15 days	textual protection
party discipline outside a House vote	may have party consequences; not automatically paragraph 2(1)(b)

Caption: Party discipline is broader than constitutional disqualification.

Visual 20 — Current Law versus Narrow-Whip Reform

Dimension	Current law	Reform proposal
votes covered	direction may extend broadly	confidence/no-confidence, money/supply or core programme
stability	high party control	protects survival votes
deliberation	individual choice reduced	greater issue-wise autonomy
status	enacted constitutional text	proposal, not law

Caption: A desirable reform must not be written as the present rule.

9. Independent and Nominated Members

[FACT] An independently elected member is disqualified if the member **joins any political party after election**.

[FACT] A nominated member is disqualified if the member joins a political party **after six months from taking the seat**. The nominated member may join within the first six months without this disqualification.

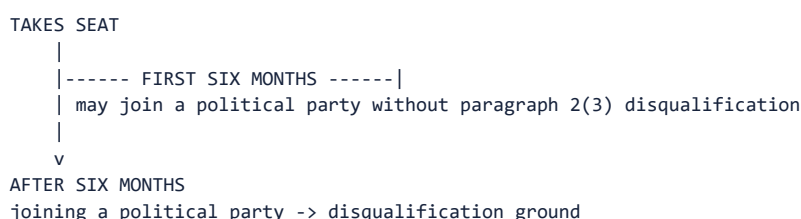
[LIMIT] The six-month freedom belongs to the nominated member, not the independent member.

Visual 21 — Member-Type Matrix

Member type	Starting position	Disqualifying trigger
elected on party ticket	deemed to belong to party that set member up	voluntary giving up or contrary vote/abstention
elected independent	no political party set the member up	joining any political party after election
nominated, already party member at nomination	deemed to belong to that party	paragraph 2(1) applies
nominated, not party member at nomination	six-month choice window	joining after six months

Caption: UPSC repeatedly tests the asymmetry between independent and nominated members.

Visual 22 — Nominated-Member Timeline



Caption: Count from taking the seat after complying with Article 99 or 188, not from nomination date.

Visual 23 — Independent versus Nominated Trap Card

Statement	Correct?	Reason
independent may join within six months	no	no grace period exists
nominated may never join a party	no	first-six-month freedom exists
nominated member's clock starts at taking the seat	yes	exact constitutional text
independent member is governed by whip of a later-joined party without disqualification	no	joining itself triggers paragraph 2(2)

Caption: Similar-looking categories have deliberately different rules.

10. Paragraph 4 Merger: Text, Threshold and Controversy

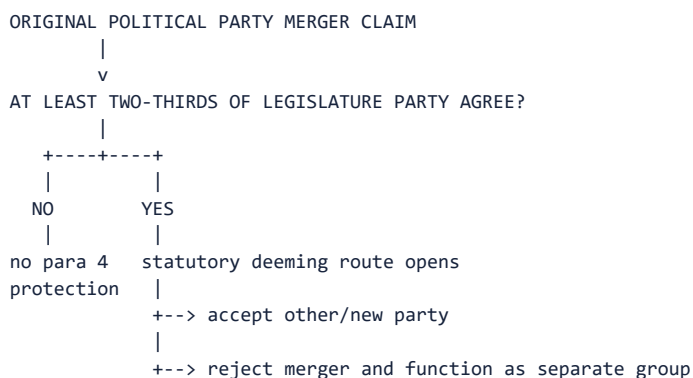
[FACT] Paragraph 4(1) begins with a member's **original political party merging with another political party**.

[FACT] Protected persons include those who become members of the other/new party and those who do not accept the merger and opt to function as a separate group.

[FACT] Paragraph 4(2) says the merger of the original political party is **deemed** to have taken place if, and only if, not less than **two-thirds of the legislature party concerned** agree to the merger.

[LIMIT] Do not reduce the rule to “two-thirds MLAs can automatically defect.” The interaction between the original-political-party language and the two-thirds deeming fiction is the central interpretive controversy.

Visual 24 — Paragraph 4 Textual Sequence



Caption: The two-thirds threshold belongs inside a merger defence; it is not a free-standing permission to switch.

Visual 25 — Who Is Protected Under Paragraph 4?

Category	Protection
member who accepts qualifying merger	protected from paragraph 2(1) disqualification
member who joins new party formed by qualifying merger	protected
member who rejects merger and functions as separate group	protected
individual who simply joins another party without paragraph 4 foundation	not protected
group below two-thirds	cannot invoke paragraph 4(2) deeming rule

Caption: Dissenters from a qualifying merger are protected as well as those accepting it.

Visual 26 — Split versus Merger

Feature	Former paragraph 3 split	Current paragraph 4 merger
threshold	one-third legislature party	not less than two-thirds
organisational claim	split in original political party	merger of original political party
current status	omitted from 1 Jan 2004	survives
safe exam line	no longer a defence	only surviving group exception

Caption: Never write “split or merger” as two current defences.

Visual 27 — Merger Interpretation Control

Position	Supporting logic	Limitation
organisational-merger emphasis	paragraph 4(1) expressly says original political party merges	must explain paragraph 4(2) deeming fiction
legislature-headcount emphasis	paragraph 4(2) deems merger when two-thirds agree	risks converting group defection into automatic merger
<i>Rajendra Singh Rana</i> analogy	under former split rule, mere legislator numbers did not prove an original-party split	case interpreted omitted paragraph 3, not a final modern paragraph 4 ruling
present safe answer	state exact text, identify controversy, avoid claiming final 2026 settlement	official later merits ruling not verified

Caption: The controversy should be preserved, not prematurely resolved by assertion.

[CURRENT] Reports in 2026 describe litigation challenging whether legislative numbers alone can support paragraph 4 protection.

[LIMIT] No official Supreme Court merits order fixing the 2026 challenge's bench, schedule or final rule was independently verified for this package. It is therefore described only as reported/pending litigation.

11. Paragraph 5: Narrow Presiding-Officer Exemption

[FACT] Paragraph 5 covers the Speaker or Deputy Speaker of Lok Sabha; Deputy Chairman of Rajya Sabha; Chairman or Deputy Chairman of a State Legislative Council; and Speaker or Deputy Speaker of a State Legislative Assembly.

[FACT] Protection applies when the person gives up party membership **by reason of election to that office**, does not rejoin that party or another party while holding office, and may rejoin the former party after ceasing to hold office.

[LIMIT] It does not create a general exemption for all ministers, whips, committee chairs or constitutional officeholders.

Visual 28 — Exact Office List

House	Covered offices
Lok Sabha	Speaker, Deputy Speaker
Rajya Sabha	Deputy Chairman
State Legislative Assembly	Speaker, Deputy Speaker
State Legislative Council	Chairman, Deputy Chairman

Caption: The President, Vice-President as such, ministers and party whips are not added by analogy.

Visual 29 — Paragraph 5 Conditions

ELECTED TO LISTED PRESIDING OFFICE
|
gives up party membership because of that election
|
does not rejoin old party or join another while in office
|
may rejoin old party after ceasing to hold office

Caption: Office, reason, timing and rejoining conditions must all be kept exact.

12. Paragraph 6: Decision Authority

[FACT] A disqualification question is referred to the **Chairman or Speaker** of the House, whose decision is declared final by paragraph 6(1).

[FACT] If the question concerns the Chairman or Speaker, the House elects a member to decide it.

[FACT] *Kihoto Hollohan* treats the presiding officer under paragraph 6 as a **tribunal** exercising adjudicatory power.

[LIMIT] The Election Commission, President or Governor does not initially decide a Tenth Schedule petition under current text.

Visual 30 — Decision Tree

QUESTION AGAINST ORDINARY MEMBER
-> Speaker / Chairman decides

QUESTION AGAINST SPEAKER / CHAIRMAN
-> House elects a member to decide

COURT ROLE
-> judicial review, not ordinary first-instance adjudication

ECI ROLE
-> no Tenth Schedule adjudication

Caption: The decider changes only when the presiding officer is personally the subject.

Visual 31 — Institutional Roles

Institution	Anti-defection role
Speaker/Chairman	first-instance adjudicator
member elected by House	adjudicator when presiding officer is concerned
High Court/Supreme Court	judicial review within constitutional limits
Election Commission	no paragraph 6 adjudication; separate symbol and Article 103/192 functions
Governor/President	no current paragraph 6 role
House as a whole	elects substitute decision-maker in presiding-officer case; receives rules

Caption: Similar constitutional institutions perform distinct disqualification functions.

13. Paragraph 8 and House Rules: Petition, Evidence and Hearing

[FACT] Paragraph 8 authorises rules on party records, condonation reports, admission to political parties and the procedure for deciding paragraph 6 questions.

[FACT] The official Lok Sabha rules require a petition with material facts, documentary evidence and verification. A compliant petition is forwarded for comments; the Speaker may decide or refer it for preliminary inquiry; no adverse finding may be made without reasonable opportunity to represent and be heard.

[FACT] Rajya Sabha procedural material similarly records petition, comments, possible Privileges Committee inquiry, hearing and written order.

[LIMIT] House-specific rules differ in detail and cannot override the substantive Tenth Schedule.

Visual 32 — Lok Sabha Process Flow

```

WRITTEN PETITION BY ANOTHER MEMBER
|
material facts + documents + verification
|
SPEAKER CHECKS COMPLIANCE
|
copies to respondent member / legislature-party leader
|
written comments
|
Speaker decides OR refers for preliminary inquiry
|
reasonable opportunity + personal hearing
|
written order: dismiss OR declare disqualification
  
```

Caption: Defection is not an automatic self-executing vacancy.

Visual 33 — Natural-Justice Checklist

Requirement	Purpose
notice of material case	member knows allegation
access to petition/documents	meaningful response
reasonable response time	avoids ambush
opportunity to be heard	adjudicatory fairness
reasoned written order	enables accountability and review
impartial application of rules	controls partisan procedure

Caption: Natural justice is both a procedural duty and a ground of judicial review.

Visual 34 — Paragraph 6(2) and Articles 122/212

PARAGRAPH 6(2):
proceedings are deemed proceedings in Parliament / State Legislature
|
protects against attack for mere procedural irregularity
|
DOES NOT:
create total immunity from jurisdictional error,
mala fides, constitutional breach, natural-justice violation or perversity

Caption: Deemed legislative proceeding is not the same as unreviewable political action.

14. Paragraph 7 and Kihoto Hollohan: Text versus Legal Effect

[FACT] Paragraph 7 still textually states that no court shall have jurisdiction in matters connected with Tenth Schedule disqualification.

[FACT] *Kihoto Hollohan v. Zachillhu* upheld the Tenth Schedule except paragraph 7, which was invalid for want of State ratification required by the proviso to Article 368(2), because the clause affected Supreme Court/High Court jurisdiction.

[FACT] The official 2026 Constitution prints paragraph 7 with a footnote recording that invalidity.

Visual 35 — Paragraph 7 Control

Layer	Position
printed text	broad court-jurisdiction bar
amendment-procedure defect	no required State ratification
<i>Kihoto</i> effect	paragraph 7 invalid and severed
present law	paragraph 6 decisions reviewable on limited grounds

Caption: Quote the text, then immediately state its invalidity and judicial effect.

Visual 36 — Kihoto Review Gates

SPEAKER / CHAIRMAN ORDER
|
v
JUDICIAL REVIEW FOR:
1. violation of constitutional mandate
2. mala fides / colourable exercise
3. non-compliance with natural justice
4. perversity / jurisdictional infirmity
|
v
NOT A FULL APPEAL ON EVERY ERROR

Caption: Review protects constitutional legality without converting the court into the routine first decider.

Visual 37 — Timing of Judicial Intervention

Stage	General rule after Kihoto	Qualification
before Speaker decides	no ordinary quia timet action	courts may aid prompt decision against disabling inaction
interlocutory stage	ordinarily no interference	grave, immediate, irreversible interlocutory disqualification/suspension exception
after final decision	review available	limited constitutional/jurisdictional grounds
prolonged non-decision	judicial direction possible	<i>Rajendra Singh Rana</i> and <i>Keisham</i> prevent frustration by delay

Caption: "Review after decision" is the baseline, not a licence for indefinite inaction.

15. Case-Law Spine

Visual 38 — Doctrine Timeline

Case	Year	Controlled proposition
<i>Kihoto Hollohan v. Zachillhu</i>	1992	Schedule upheld; para 7 invalid; Speaker tribunal; limited review
<i>Ravi S. Naik v. Union of India</i>	1994	voluntary giving up wider than formal resignation
<i>G. Viswanathan v. Speaker</i>	1996	expulsion does not erase deemed original-party belonging
<i>Rajendra Singh Rana v. Swami Prasad Maurya</i>	2007	inaction and unsupported split recognition cannot defeat Schedule
<i>Nabam Rebia v. Deputy Speaker</i>	2016	removal-notice restriction on Speaker; correctness later referred
<i>Shrimanth Balasaheb Patil v. Speaker</i>	2019	resignation does not erase prior defection; no extra election ban
<i>Keisham Meghachandra Singh v. Speaker</i>	2020	reasonable period; ordinarily three-month outer limit; tribunal proposal
<i>Subhash Desai v. Principal Secretary, Governor</i>	2023	political party appoints whip/leader; split unavailable; ECI concurrent
Telangana defection judgment	2025	official case-specific three-month direction

Caption: Learn each case as one precise proposition plus one qualification.

Visual 39 — Case Selection by Issue

Issue in question	First case to cite	Add if space
Speaker review	<i>Kihoto</i>	<i>Keisham</i>
conduct as giving up	<i>Ravi S. Naik</i>	<i>Shrimanth</i>
delay/inaction	<i>Rajendra Singh Rana</i>	<i>Keisham</i> , Telangana 2025
resignation	<i>Shrimanth</i>	<i>Subhash Desai</i>
political versus legislature party	<i>Subhash Desai</i>	exact paragraph 1/2 text
removal notice	<i>Nabam Rebia</i>	seven-judge reference in <i>Subhash Desai</i>
expulsion	<i>G. Viswanathan</i>	paragraph 2 deeming explanation

Caption: Named evidence should answer the issue, not decorate the paragraph.

16. Delay: No Express Deadline, but No Power to Defeat the Constitution

[FACT] The Tenth Schedule contains no express decision deadline.

[FACT] *Keisham Meghachandra Singh* held that the Speaker, acting as tribunal, is bound to decide within a reasonable period; absent exceptional circumstances with good reason, **three months from filing** is the outer limit identified by the Court.

[FACT] *Keisham* also urged Parliament to consider a permanent tribunal headed by a retired Supreme Court judge, retired Chief Justice of a High Court or another independent mechanism.

[LIMIT] The three-month norm is judicial doctrine, not text inserted by constitutional amendment or a universal statutory rule.

Visual 40 — Delay Doctrine

NO EXPRESS SCHEDULE DEADLINE

|
does not mean unlimited discretion

|
SPEAKER = TRIBUNAL

|
reasonable-time constitutional duty

|
KEISHAM:
ordinarily three months absent exceptional circumstances

Caption: Constitutional silence cannot be converted into a power to nullify the law by waiting.

Visual 41 — Time-Control Hierarchy

Source	Time control	Status
Tenth Schedule	none express	constitutional text
House rules	procedural periods may exist	House-specific
<i>Keisham</i>	ordinarily three months	judicial norm
individual court order	case-specific period	binding in that litigation
reform proposal	fixed constitutional/statutory deadline	not enacted

Caption: Separate general doctrine from a direction issued in a particular case.

Visual 42 — Official Telangana Control, 31 July 2025

Verified official holding	Safe use
Supreme Court restored the Single Judge's approach and directed conclusion of proceedings against ten MLAs	illustration of judicial control of delay
direction: as expeditiously as possible and in any case within three months from judgment	case-specific order
Speaker directed not to permit protraction; adverse inference if MLAs attempted delay	procedural control in that case
no later contempt warning verified here	do not add reported procedural claims

Caption: Use the official judgment's direction; do not embellish it with unverified later news.

17. Resignation versus Disqualification

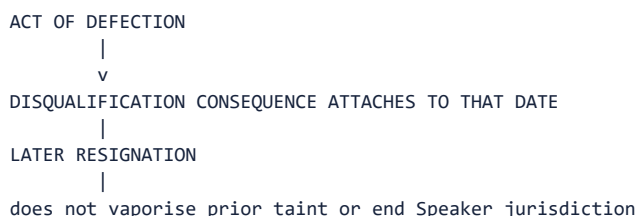
[FACT] *Shrimanth Balasaheb Patil* holds that disqualification relates to the date of the act of defection. A later resignation does not remove the Speaker's jurisdiction where the alleged defection occurred first.

[FACT] Resignation and disqualification are distinct mechanisms that can produce a vacancy.

[FACT] The Speaker cannot invent an additional bar preventing the disqualified person from contesting elections until the House term ends.

[LIMIT] Re-election does not retrospectively erase the adjudication of prior defection; it affects the duration of specified office disabilities under Articles 75(1B), 164(1B) and 361B.

Visual 43 — Chronology Test



Caption: Always identify which event occurred first.

Visual 44 — Resignation and Disqualification Compared

Feature	Resignation	Tenth Schedule disqualification
source	Articles 101/190 and House process	Articles 102(2)/191(2), Tenth Schedule
key inquiry	voluntary and genuine resignation	paragraph 2 conduct and defences
decider	presiding officer for resignation acceptance	presiding officer as tribunal
timing	prospective vacancy on acceptance	relates to defection act as adjudicated
office bars	no automatic 75(1B)/164(1B)/361B bar merely from resignation	constitutional bars apply after paragraph 2 disqualification

Caption: Resigning is not a universal escape hatch from pending defection allegations.

18. Consequences and the 91st-Amendment Office Bars

[FACT] Disqualification results in loss of the House seat.

[FACT] Articles 75(1B) and 164(1B) bar appointment as Minister from disqualification until the original term would expire or until the person contests and is declared elected, whichever is earlier.

[FACT] Article 361B similarly bars a remunerative political post for that period.

[LIMIT] The Speaker cannot add a separate election-contest ban. There is no permanent political disqualification, criminal penalty or automatic lifetime ban.

Visual 45 — Consequence Matrix

Consequence	Yes/No	Control
seat becomes vacant	yes	Articles 101/190 read with 102(2)/191(2)
can be Minister immediately despite disqualification	no	Articles 75(1B)/164(1B)
remunerative political post	barred for specified period	Article 361B
can contest election if otherwise qualified	yes	<i>Shrimanth</i> rejects extra Speaker-imposed ban
criminal prosecution merely for defection	no	not created by Tenth Schedule
permanent political disability	no	Constitution supplies limited consequences

Caption: Political condemnation must not be converted into a non-existent legal penalty.

Visual 46 — Duration of Office Disability

START: DATE OF DISQUALIFICATION
|
+--> original term would expire
|
+--> person contests and is declared elected earlier
|
END AT WHICHEVER IS EARLIER

Caption: The constitutional office bar is not identical to a bar on contesting elections.

19. Nabam Rebia and the Pending-Removal-Notice Problem

[FACT] *Nabam Rebia* held that a Speaker should not adjudicate disqualification petitions while a notice of intention to move a resolution for the Speaker's removal is pending.

[FACT] *Subhash Desai* referred the correctness of *Nabam Rebia* to a larger Bench of seven judges.

[CURRENT] Official sources checked for this package did not establish a later published seven-judge merits ruling changing that reference position.

[LIMIT] The safe 2026 answer is therefore: state the *Nabam Rebia* rule, state the *Subhash Desai* reference, and do not claim that the doctrine has been finally overruled or reaffirmed.

Visual 47 — Nabam Rebia Status Map

2016 NABAM REBIA
removal-notice restriction on Speaker
|
v
2023 SUBHASH DESAI
correctness referred to seven-judge Bench
|
v
2026 CONTROL FOR THIS PACKAGE
no verified later merits ruling -> preserve reference status

Caption: A reference creates doctrinal uncertainty; it is not itself an overruling.

Visual 48 — Competing Risks

If Speaker continues	If Speaker is disabled by notice
possible partisan adjudication affecting majority	members may strategically issue removal notice
prompt enforcement of Schedule possible	defection decisions may be paralysed
constitutional tribunal remains active	Speaker's own legitimacy is contested

Caption: The unresolved issue involves two competing opportunities for constitutional manipulation.

20. Subhash Desai: Whip, Party Identity, ECI and Governor

[FACT] *Subhash Desai* holds that the **political party**, not the legislature party, appoints the Whip and Leader in the House and issues the relevant voting direction.

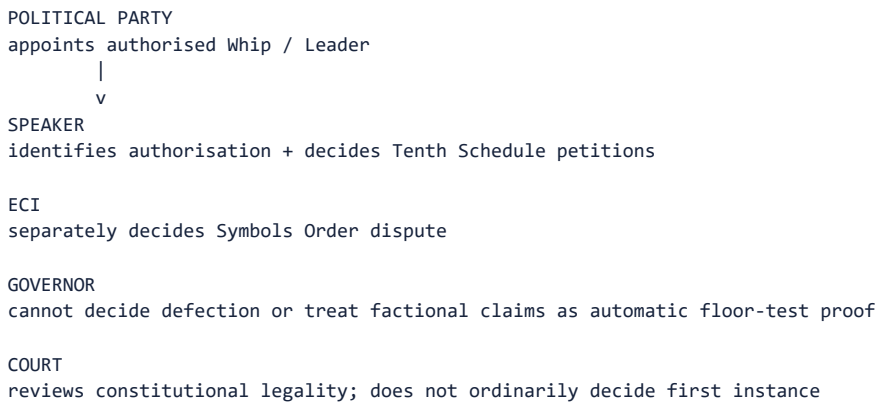
[FACT] The Speaker must identify the authorised party position by reference to the party constitution and an inquiry, not merely accept a factional legislature headcount.

[FACT] The Speaker and ECI may concurrently adjudicate Tenth Schedule and Symbols Order proceedings respectively.

[FACT] The Court held the Governor's call for a floor test in the circumstances lacked objective material, but status quo ante could not be restored because the Chief Minister had resigned without facing the floor test. The later invitation to form government was upheld on the material then available.

[LIMIT] The Court did not itself disqualify the members, restore the former government, or decide the merits of the symbol dispute.

Visual 49 — Subhash Desai Institutional Map



Caption: Four institutions operate on different legal tracks.

Visual 50 — Political Party Authority Chain

Question	Correct authority after Subhash Desai
who appoints authorised Whip?	political party
can legislature faction appoint a rival whip merely by numbers?	no
how does Speaker identify party authority?	party constitution, leadership structure and inquiry
does legislator headcount alone settle real political party?	no
can ECI symbol case proceed?	yes, concurrently on separate legal track

Caption: Party identity cannot be rewritten solely inside the legislature.

Visual 51 — Floor Test versus Defection

Device	Purpose	Decider
floor test	tests whether ministry has House confidence	House vote, convened constitutionally
defection petition	tests individual member's Tenth Schedule liability	Speaker/Chairman
symbol dispute	determines recognised party/symbol under Symbols Order	ECI
government invitation	fills CM/PM vacancy based on support material	Governor/President within constitutional limits

Caption: A floor test cannot substitute for a defection adjudication.

21. Expulsion, Resignation and Party Discipline

[FACT] Expulsion from a political party is not itself a separately listed Tenth Schedule ground.

[FACT] Under *G. Viswanathan*, an expelled member remains deemed to belong to the original party for Tenth Schedule purposes; joining another party or other qualifying conduct can attract disqualification.

[ANALYSIS] This prevents parties and members from evading the Schedule by using the label “unattached”.

[LIMIT] Internal party expulsion, House expulsion and Tenth Schedule disqualification are distinct legal actions.

Visual 52 — Three Different Exits

Event	Actor	Legal track
party expulsion	political party	internal party discipline; deemed belonging may continue
House expulsion	House exercising privilege/power	seat consequence under separate constitutional doctrine
resignation	member, accepted through constitutional process	vacancy route
anti-defection disqualification	Speaker/Chairman adjudication	Tenth Schedule

Caption: Similar political outcomes can arise from different constitutional sources.

22. Comparison with Other Disqualification and Dispute Regimes

Visual 53 — Anti-Defection versus Articles 102(1)/191(1) and RPA

Feature	Tenth Schedule	Other constitutional/RPA disqualification
constitutional hook	Articles 102(2), 191(2)	Articles 102(1), 191(1), RPA
typical grounds	defection	office of profit, citizenship, conviction and statutory grounds
first decider for sitting member	Speaker/Chairman	President/Governor
ECI opinion	no adjudicatory role	obtained and followed under Articles 103/192
judicial review	<i>Kihoto</i> line	ordinary constitutional review

Caption: Do not send a Tenth Schedule petition to the Governor under Article 192.

Visual 54 — Anti-Defection versus Symbol Dispute

Feature	Tenth Schedule	Election Symbols Order
question	member's continued House membership	recognised party/group and reserved symbol
authority	Speaker/Chairman	Election Commission
legal source	Constitution	Symbols Order
can proceed concurrently?	yes	yes, per <i>Subhash Desai</i>
one automatically decides the other?	no	no

Caption: Party-symbol ownership and legislative disqualification overlap factually but not jurisdictionally.

Visual 55 — Anti-Defection versus Privilege

Feature	Defection	Breach of privilege
protected interest	party mandate and government stability	authority, dignity and functioning of House
trigger	paragraph 2 conduct	obstruction/contempt of House privilege
process	paragraph 6/8 and rules	House privilege procedure
consequence	disqualification/seat loss	admonition, suspension, imprisonment or expulsion depending law
automatic equivalence	none	none

Caption: Paragraph 8 may treat wilful rule breach like privilege, but the doctrines remain distinct.

Visual 56 — Six-Way Distinction Sheet

Issue	Correct owner
voluntary giving up / whip breach	Tenth Schedule
conviction under RPA	RPA and Articles 102/191
party symbol	ECI under Symbols Order
speech obstructing House authority	privilege
member voluntarily leaving seat	resignation
party removing member from organisation	expulsion under party rules

Caption: UPSC close options often move a correct fact into the wrong legal regime.

23. Scope and Democratic Evaluation

[ANALYSIS] The law's strongest defence is stability: voters choose party-linked candidates, ministries require dependable support, and office-induced floor-crossing can corrupt the mandate.

[ANALYSIS] Its strongest criticism is overbreadth: the current text can make an ordinary legislative vote a seat-risk issue whenever a valid party direction is issued.

[LIMIT] Stability and deliberation are not binary. Confidence, money and core-programme votes have stronger party-discipline justification than every clause, amendment or policy question.

Visual 57 — Stability–Freedom Balance

TOO LITTLE PARTY DISCIPLINE
government instability / transactional defection
|
|---- constitutional balance ----|
|
TOO MUCH PARTY DISCIPLINE
executive dominance / silent legislators / weak scrutiny

Caption: The reform task is calibration, not abolition of all discipline.

Visual 58 — What the Law Achieved and What It Displaced

Achievement	Displaced problem
raised cost of individual floor-crossing	encouraged coordinated group action
recognised political parties constitutionally	centralised power in party leadership
stabilised confidence arithmetic	widened whip control over deliberation
enabled seat loss for abandonment	created incentives for resignation route
judicial review added legality	delay still affects political timing

Caption: Institutional rules redirect behaviour rather than eliminating incentives.

Visual 59 — Loophole and Incentive Map

INDIVIDUAL DEFECTION COSTLY

- |
- +++> assemble two-thirds merger claim
- +++> resign before/around floor test
- +++> delay Speaker decision
- +++> contest party identity / whip authority
- +++> litigate timing across institutions

Caption: The law changed the technology of defection.

24. Critiques with Counter-Arguments

Visual 60 — Critique–Reply Matrix

Critique	Named evidence	Reply	Qualification
"retail banned, wholesale legalised"	paragraph 4 two-thirds route	genuine party realignment may need protection	original-party/legislature-party controversy persists
Speaker is partisan	<i>Kihoto</i> minority concern, <i>Keisham</i>	high office and judicial review provide safeguards	review after political event may be too late
whip destroys conscience	broad paragraph 2(1)(b) text	confidence discipline is necessary	every vote need not threaten stability
resignation defeats law	Karnataka experience	<i>Shrimanth</i> preserves prior disqualification jurisdiction	re-election remains legally possible
delay nullifies remedy	<i>Rajendra Singh Rana</i> , <i>Keisham</i>	courts can direct decision	no express constitutional deadline

Caption: A high-scoring answer gives each criticism a serious reply and a final qualification.

Visual 61 — Legitimate and Overbroad Whip Uses

Stronger justification	Weaker justification
confidence/no-confidence	ordinary policy detail
money/supply needed for government survival	committee deliberation
core manifesto/coalition commitment	conscience or constituency-specific issue
constitutional survival vote	routine private member matter

Caption: This is an analytical reform frame, not the current legal boundary.

25. Reform Proposals and Trade-Offs

[FACT] The Dinesh Goswami Committee proposed limiting disqualification for whip defiance to specified high-stakes votes including confidence/no-confidence, Money Bills and the motion of thanks to the President's Address.

[FACT] The Law Commission's 170th Report criticised abuse of the merger/split framework and proposed stronger redesign; the 255th Report recommended President/Governor decision on ECI advice.

[FACT] *Keisham* proposed an independent permanent tribunal and supplied the ordinary three-month judicial norm.

[ANALYSIS] Internal party democracy is complementary: a narrow whip is less valuable if candidate selection and party decisions remain opaque and centralised.

[LIMIT] None of these reforms has replaced the current Tenth Schedule decision authority or generally narrowed paragraph 2(1)(b).

Visual 62 — Reform Menu

Reform	Benefit	Risk/trade-off	Status
narrow binding whips	restores legislative judgment	more intra-party instability	proposal
independent tribunal	impartiality and expertise	appointment/design disputes	Keisham proposal
President/Governor on ECI advice	follows Articles 103/192 model	politicisation concerns may shift to ECI	Law Commission proposal
fixed decision deadline	prevents strategic delay	complex cases need exception	proposal; judicial norms exist
merger redesign/removal	closes wholesale route	may obstruct genuine party realignment	proposal
internal party democracy	legitimacy of directions	difficult judicial administration	political/legal reform

Caption: Every reform solves one failure while creating a new institutional design question.

Visual 63 — Reform-Level Ladder

HOUSE RULE CHANGE
 petition procedure / disclosure / hearing management
 |
 STATUTORY OR SYMBOLS-ORDER CHANGE
 party transparency / ECI processes
 |
 CONSTITUTIONAL AMENDMENT
 change paragraph 2, 4 or 6; create new decider
 |
 POLITICAL-PARTY PRACTICE
 internal consultation, recorded whip reasons, member voice

Caption: Reform credibility depends on choosing the correct legal instrument.

Visual 64 — Preferred Balanced Package

NARROW WHIP TO GOVERNMENT-SURVIVAL / CORE VOTES
 +
 INDEPENDENT, TIME-BOUND ADJUDICATOR
 +
 REASONED PARTY AUTHORISATION AND DISCLOSURE
 +
 MERGER DEFENCE REDESIGN
 +
 INTERNAL PARTY DEMOCRACY

Caption: No single reform solves overbroad discipline, biased decision-making and group loopholes together.

26. Answer-Writing Method

Visual 65 — Claim–Evidence–Analysis–Qualification

CLAIM
 "Speaker delay can defeat the Tenth Schedule."
 |
 NAMED EVIDENCE
 Kihoto tribunal status + Rajendra Singh Rana + Keisham
 |
 ANALYSIS
 political majority may change before review becomes useful
 |
 QUALIFICATION
 no express textual deadline; three months is judicial doctrine

Caption: The qualification protects accuracy without weakening the thesis.

Visual 66 — Mark-Scaled Architecture

Marks	Structure	Evidence density
10	definition -> exact rule -> one case -> one critique -> verdict	2-3 named anchors
15	evolution -> paragraph mechanics -> cases -> balance -> reform	4-6 anchors
20	constitutional map -> doctrine -> institutional conflicts -> cases -> consequences -> reforms -> graded verdict	6-8 anchors

Caption: More marks require more dimensions, not repetition.

Visual 67 — Directive Decoder

Directive	Required move
explain	state text and mechanism
examine	test operation with evidence
critically examine	benefits, defects, counterpoints and verdict
discuss	organise relevant dimensions with balance
analyse	show causation, incentives and consequences
distinguish	use a controlled comparison table

Caption: A legally correct answer can still underperform if it ignores the directive.

27. Current and Legal Control Dashboard

Visual 68 — Frozen and Unfrozen Statements

Safe current statement	Deliberately unfrozen
official Constitution as on 1 May 2026 retains current Tenth Schedule text	current party strength or faction leadership
paragraph 3 remains omitted	final result of reported 2026 merger litigation
<i>Subhash Desai</i> referred <i>Nabam Rebia</i> correctness to seven judges	claim of later overruling without official judgment
Telangana judgment of 31 July 2025 gave case-specific three-month direction	later contempt warning not officially verified
ECI and Speaker tracks may proceed concurrently	current symbol ownership in any live dispute

Caption: Current-affairs accuracy often requires refusing to freeze volatile litigation or politics.

Visual 69 — High-Risk Current Claims

Risky claim	Controlled replacement
"Supreme Court settled the merger issue in 2026"	reported litigation exists; no verified later merits rule used
"Telangana Speaker was threatened with contempt"	official 2025 judgment directed decision within three months; no later warning claimed
"Nabam Rebia has been overruled"	correctness referred in 2023; no later official merits ruling verified
"Shiv Sena case restored the old government"	status quo was not restored
"ECI decides defections"	ECI decides separate symbol/other disqualification matters, not paragraph 6 petitions

Caption: The best legal-current answer is often a carefully bounded one.

28. Prelims Trap Wall

Visual 70 — Twenty-Four Trap Repairs

Trap	Repair
anti-defection law is an ordinary Act	it is in the Constitution's Tenth Schedule
commenced on 15 Feb 1985	Act dated then; Schedule effective 1 Mar 1985
91st Amendment enacted in 2004	called the 2003 Act; effective 1 Jan 2004
split and merger both survive	split omitted; merger survives
one-third is current threshold	two-thirds for merger
two-thirds legislators may simply switch	paragraph 4 merger conditions and controversy must be addressed
voluntary giving up means written resignation only	conduct may establish it
every dissenting speech violates whip	paragraph 2(1)(b) concerns vote/abstention contrary to direction
condonation period is 30 days	15 days
prior permission is irrelevant	it is express protection
independent has six-month window	no window
nominated can never join a party	may join within six months from taking seat
every presiding officer is exempt	only exact paragraph 5 offices/conditions
ECI decides Tenth Schedule cases	Speaker/Chairman decides
Governor decides State MLA defection	Speaker/Chairman, not Article 192 route
Speaker's decision is beyond review	<i>Kihoto</i> permits limited review
paragraph 7 was deleted	text remains printed but is invalid
courts normally decide first	Speaker decides first
no deadline means unlimited delay	<i>Keisham</i> reasonable-time/three-month doctrine
resignation ends pending case	<i>Shrimanth</i> says prior taint survives
Speaker can bar re-election until term end	<i>Shrimanth</i> rejects extra ban
defection is a crime	no criminal liability under Schedule
symbol ruling settles defection	separate concurrent tracks
party expulsion automatically disqualifies	not by itself; deemed-party status remains relevant

Caption: These are close-option errors rather than broad conceptual mistakes.

Anti-Defection PYQ and Practice Workbook

[FACT] Audited local routing identifies two direct Prelims demands and one cross-owned Mains demand relevant to this package.

[LIMIT] The routed ledgers preserve neutral demand summaries, not full official wording. No wording is reconstructed. No official answer letter is claimed where the ledger does not record it.

Visual 71 — Verified PYQ Route Map

Year	Stage	Q	Verified neutral demand	Key/wording control
2022	Prelims GS-I	16	nominated legislators under anti-defection law	key unavailable locally
2025	Prelims GS-I	88	Tenth Schedule disqualification and mention of political party	official key file exists; answer letter not recorded
2023	Mains GS-II	5	role of State presiding officers in order and impartial conduct	10 marks, 150 words

Caption: The package solves the concepts without inventing missing official keys or wording.

Routed Prelims PYQ 1 — 2022 GS-I Q16

Verified neutral demand: Anti-defection provisions for nominated legislators.

Source status: Key unavailable locally; exact official wording is not reconstructed.

Concept resolution — not an officially verified answer letter

- [FACT] A nominated member who is already a party member at nomination is deemed to belong to that party.
- [FACT] A nominated member who is not then a party member may join a party before expiry of six months from taking the seat.
- [FACT] Joining after that six-month period triggers paragraph 2(3) disqualification.
- [LIMIT] The rule differs from an independent elected member, who is disqualified on joining any party after election.

Elimination method: Reject any statement saying “never”, “only after six months”, or giving an independent member the six-month window.

Confidence: High on the doctrine; no official option letter claimed.

Routed Prelims PYQ 2 — 2025 GS-I Q88

Verified neutral demand: Tenth Schedule disqualification and express mention of “political party”.

Source status: Official Set-A key file is present locally, but the routed ledger does not record the answer letter; no letter is claimed.

Concept resolution

- [FACT] Paragraph 2 repeatedly uses political party: the party that set up the elected candidate, the party membership voluntarily given up, and the party/person/authority issuing a direction.
- [FACT] Paragraph 1 separately defines legislature party and original political party.
- [FACT] *Subhash Desai* confirms that the political party, not a factional legislature party, appoints the authorised Whip and Leader.
- [LIMIT] The phrase “political party” does not mean the ECI becomes the paragraph 6 adjudicator.

Elimination method: Distinguish organisational party authority from the House-level group and from ECI's separate Symbols Order function.

Routed Mains PYQ — 2023 GS-II Q5

Verified neutral demand: Discuss the role of Presiding Officers of State legislatures in maintaining order and impartial conduct of business. **10 marks | 150 words**

Model solution

Thesis: [FACT] State presiding officers are procedural guardians whose powers over debate, discipline, voting and defection make impartiality a constitutional operating condition.

1. [CLAIM] They maintain orderly deliberation. [EVIDENCE] Articles 178-185 create the offices; House rules govern recognition, admissibility, discipline and voting. [ANALYSIS] fair allocation of speaking and motion time protects majority decision and opposition scrutiny. [LIMIT] broad procedural discretion requires consistent reasons.
2. [CLAIM] They perform high-impact constitutional functions. [EVIDENCE] Article 189 supplies the casting vote, Article 199 involves Money Bill certification, and paragraph 6 of the Tenth Schedule assigns defection adjudication. [ANALYSIS] these decisions can affect bicameral scrutiny and government survival. [LIMIT] political membership creates an appearance-of-bias risk.
3. [CLAIM] Judicial control supports impartiality. [EVIDENCE] *Kihoto Hollohan* treats the Speaker as a reviewable tribunal; *Keisham* requires reasonable-time decision-making. [ANALYSIS] legality and timeliness prevent procedure from becoming partisan strategy. [LIMIT] the proposed independent tribunal is not enacted.

Verdict: Impartiality should be institutionalised through reasoned rulings, equal procedure, timely decisions and neutral defection adjudication, not left to personal convention alone.

Why this earns marks: It connects functions to impartiality, uses Articles and cases, and avoids a generic list of Speaker powers.

Visual 72 — MCQ Rotation Plan

Q1 A -> Q2 B -> Q3 C -> Q4 D
repeat without interruption through Q48

Original MCQs: Q1-Q36
Remedials: Q37-Q48

Caption: The answer-key sequence is continuous across both practice blocks.

Original MCQs 1-36 — Strict Continuous A -> B -> C -> D Rotation

Q1. With reference to the 52nd Amendment, which statement is correct?

A. The Act is dated 15 February 1985, while the Tenth Schedule came into force on 1 March 1985. B. It amended only Articles 102 and 191. C. It came into force on 1 January 2004. D. It inserted the Ninth Schedule.

Answer: A.

Explanation: [FACT] The 52nd Amendment amended Articles 101, 102, 190 and 191 and inserted the Tenth Schedule; the official consolidation records effect from 1 March 1985.

Q2. “Legislature party” under paragraph 1 most accurately means:

A. the national executive of a political party. B. all members of that House who for the time being belong to that political party under the Schedule. C. only elected members, excluding nominated members. D. any faction supported by two-thirds of the House.

Answer: B.

Explanation: [FACT] It is a House-specific group. It is not the party organisation or any self-declared faction.

Q3. A nominated member who was not a party member at nomination:

A. can never join a party. B. may join only after six months. C. may join within six months from taking the seat without paragraph 2(3) disqualification. D. is treated exactly like an independent elected member.

Answer: C.

Explanation: [FACT] The first-six-month choice window is specific to the nominated member.

Q4. An independently elected member is disqualified if the member:

A. abstains on a non-whipped motion. B. criticises a political party. C. declines ministerial office. D. joins any political party after election.

Answer: D.

Explanation: [FACT] Paragraph 2(2) provides no six-month grace period.

Q5. Which best states Ravi S. Naik?

A. Voluntarily giving up membership may be inferred from conduct and is not confined to formal resignation. B. Only a written resignation can establish defection. C. ECI decides conduct-based defection. D. Expulsion automatically ends Tenth Schedule membership.

Answer: A.

Explanation: [FACT] The phrase is wider than formal resignation, though inference remains evidence- and context-dependent.

Q6. Paragraph 2(1)(b) requires, among other things:

A. a direction only from the legislature party. B. contrary vote/abstention without prior permission and no condonation within 15 days. C. a criminal conviction. D. a formal party resignation.

Answer: B.

Explanation: [FACT] Direction, contrary voting/abstention, no prior permission and no timely condonation form the textual chain.

Q7. After Subhash Desai, the authorised Whip for Tenth Schedule purposes is appointed by:

A. the Governor. B. the largest faction in the legislature party. C. the political party. D. the Election Commission.

Answer: C.

Explanation: [FACT] The political party, not merely the legislature party, appoints the Whip and Leader.

Q8. Which conduct is least capable, by itself, of establishing paragraph 2(1)(b)?

A. voting contrary to a valid direction. B. abstaining contrary to a valid direction. C. voting without prior permission and without condonation. D. making a dissenting speech without a contrary vote or abstention.

Answer: D.

Explanation: [LIMIT] The constitutional voting ground is not a general speech-control provision.

Q9. Paragraph 4 protection requires:

A. a merger framework and not less than two-thirds of the legislature party agreeing to the merger. B. one-third of the legislature party forming a faction. C. only a public statement by the defecting members. D. approval by the Governor.

Answer: A.

Explanation: [FACT] Two-thirds operates within paragraph 4's merger structure.

Q10. Paragraph 3 of the Tenth Schedule:

A. protects nominated members. B. was omitted by the 91st Amendment. C. gives ECI jurisdiction. D. creates judicial review.

Answer: B.

Explanation: [FACT] The former one-third split defence ceased with effect from 1 January 2004.

Q11. Paragraph 5 protection can apply to:

A. every minister. B. every committee chair. C. a listed Speaker/Deputy Speaker or Chairman/Deputy Chairman who satisfies the conditions. D. every constitutional officeholder.

Answer: C.

Explanation: [FACT] It is an exact office-and-condition exemption, not a general neutrality clause.

Q12. If the disqualification question concerns the Speaker:

A. the Governor decides. B. ECI decides. C. the Deputy Speaker automatically decides. D. a member elected by the House for that purpose decides.

Answer: D.

Explanation: [FACT] This is the proviso to paragraph 6(1).

Q13. The current legal effect of paragraph 7 is that:

A. its printed court-bar text remains, but it is invalid under *Kihoto* for want of ratification. B. it fully excludes judicial review. C. it was omitted by the 91st Amendment. D. it transfers jurisdiction to ECI.

Answer: A.

Explanation: [FACT] The official 2026 Constitution includes the text and the invalidity footnote.

Q14. Kihoto permits review for:

A. every factual disagreement as a full appeal. B. constitutional violation, mala fides, natural-justice breach and perversity. C. only delay. D. only a criminal offence.

Answer: B.

Explanation: [FACT] The review is limited to jurisdictional/constitutional infirmities.

Q15. Ordinary interlocutory court interference under Kihoto is:

A. mandatory in every petition. B. identical to appellate review. C. generally excluded, subject to grave and irreversible interlocutory consequences. D. controlled by ECI.

Answer: C.

Explanation: [FACT] The baseline protects first-instance Speaker adjudication while preserving a narrow exception.

Q16. On decision time, the Tenth Schedule:

A. fixes 15 days. B. fixes 30 days. C. fixes three months expressly. D. contains no express deadline.

Answer: D.

Explanation: [FACT] The three-month norm comes from *Keisham*, not the text.

Q17. Keisham Meghachandra Singh stated that, absent exceptional circumstances:

A. three months is the ordinary outer limit and Parliament should consider an independent tribunal. B. ECI must decide in 15 days. C. every petition must go directly to the Supreme Court. D. delay is wholly non-justiciable.

Answer: A.

Explanation: [FACT] The Court tied reasonable time to the Schedule's constitutional objective.

Q18. The official 31 July 2025 Telangana judgment:

A. abolished Speaker jurisdiction. B. directed conclusion of specified proceedings within three months. C. imposed criminal punishment. D. finally settled every future timeline case.

Answer: B.

Explanation: [FACT] It was a case-specific judicial direction, not a constitutional amendment.

Q19. Under Shrimanth Balasaheb Patil, a resignation tendered after the alleged defection:

A. automatically ends the petition. B. transfers the case to ECI. C. does not erase prior defection or the Speaker's jurisdiction. D. creates a permanent election bar.

Answer: C.

Explanation: [FACT] Disqualification relates to the date of the defection act.

Q20. The Speaker's power after disqualification includes:

A. imposing any politically desirable penalty. B. barring all future elections. C. ordering imprisonment. D. no power to add a term-long election-contest ban beyond the Constitution.

Answer: D.

Explanation: [FACT] *Shrimanth* struck down the extra duration/election restriction.

Q21. Articles 75(1B), 164(1B) and 361B:

A. create specified ministerial/remunerative-post disabilities after paragraph 2 disqualification. B. prohibit contesting every election. C. transfer defection cases to the President. D. protect a one-third split.

Answer: A.

Explanation: [FACT] The disabilities last until term expiry or earlier declared re-election, whichever is earlier.

Q22. ECI's role in a Tenth Schedule petition is:

A. first-instance adjudication. B. no paragraph 6 adjudicatory role. C. automatic appellate authority. D. issuing the party whip.

Answer: B.

Explanation: [FACT] ECI has separate symbol and Articles 103/192 functions.

Q23. According to Subhash Desai, symbol and defection proceedings:

A. cannot coexist. B. must be merged in the Supreme Court. C. may proceed concurrently before ECI and Speaker on separate tracks. D. are both decided by the Governor.

Answer: C.

Explanation: [FACT] One proceeding does not automatically suspend the other.

Q24. The Governor's role in a live party split is best stated as:

A. deciding who defected. B. appointing the party Whip. C. deciding the symbol dispute. D. exercising constitutional government-formation/floor-test functions without replacing Speaker or ECI jurisdictions.

Answer: D.

Explanation: [FACT] *Subhash Desai* keeps institutional tracks distinct and requires objective material.

Q25. As controlled for this package, Nabam Rebia:

A. remains a rule whose correctness was referred to seven judges in *Subhash Desai*, with no later verified merits ruling used here. B. was conclusively overruled in 2023. C. concerns nominated members. D. abolished judicial review.

Answer: A.

Explanation: [CURRENT] [LIMIT] A reference is not itself an overruling.

Q26. Which is a direct legal consequence of Tenth Schedule disqualification?

A. criminal conviction. B. vacancy of the seat. C. permanent ban from politics. D. cancellation of party registration.

Answer: B.

Explanation: [FACT] The Schedule concerns membership, with linked constitutional office bars.

Q27. Party expulsion of a legislator:

A. automatically makes the person independent. B. automatically disqualifies under paragraph 2. C. does not by itself erase deemed original-party belonging for Tenth Schedule purposes. D. transfers the seat to the party.

Answer: C.

Explanation: [FACT] *G. Viswanathan* prevents the "unattached" label from defeating the Schedule.

Q28. A post-election office-of-profit or RPA disqualification question for a sitting State member is ordinarily decided by:

A. Speaker under paragraph 6. B. ECI alone. C. Chief Minister. D. Governor under Article 192 after obtaining and acting according to ECI opinion.

Answer: D.

Explanation: [FACT] This differs from the Tenth Schedule route.

Q29. Breach of privilege and defection:

A. are distinct constitutional regimes even though paragraph 8 rules may address wilful rule contravention like privilege. B. are always identical. C. are both decided by ECI. D. always produce permanent disqualification.

Answer: A.

Explanation: [FACT] Their protected interests, grounds and procedures differ.

Q30. The strongest democratic defence of anti-defection is:

A. party leaders should control every speech. B. it protects government stability and the party-linked electoral mandate. C. it eliminates all corruption. D. it makes courts unnecessary.

Answer: B.

Explanation: [ANALYSIS] The defence is substantial but must be balanced against deliberative freedom.

Q31. A narrow-whip reform would most plausibly:

A. abolish parties. B. remove all confidence discipline. C. confine seat-risk directions to confidence, money/supply or core matters. D. give ECI power to legislate.

Answer: C.

Explanation: [ANALYSIS] The goal is calibrated party discipline, not no discipline.

Q32. The safest statement on paragraph 4 controversy is:

A. two-thirds can always defect freely. B. original-party text is irrelevant. C. the issue was conclusively settled in 2026. D. exact text and competing interpretations must be stated; no unverified final 2026 rule should be claimed.

Answer: D.

Explanation: [CURRENT] [LIMIT] The package preserves the unresolved interpretive question.

Q33. Under official Lok Sabha procedure, a compliant petition is followed by:

A. service of copies/comments and a reasonable opportunity before an adverse finding. B. immediate automatic vacancy. C. ECI investigation. D. a criminal trial.

Answer: A.

Explanation: [FACT] The procedure reflects the adjudicatory nature recognised in *Kihoto*.

Q34. Paragraph 6(2)'s deeming of proceedings as legislative proceedings:

A. removes every court power. B. protects against mere procedural-irregularity attacks but not jurisdictional constitutional review. C. makes the Speaker a political party officer. D. eliminates natural justice.

Answer: B.

Explanation: [FACT] *Kihoto* limits, rather than abolishes, review.

Q35. The 2025 routed concept emphasising “political party” is best answered by noting:

A. only legislature-party numbers matter. B. ECI becomes the defection tribunal. C. the Schedule links candidate-setting, membership and directions to the political party. D. political parties are not mentioned in paragraph 2.

Answer: C.

Explanation: [FACT] The phrase is structurally central to the Schedule.

Q36. Which statement about a nominated member is correct?

A. the six-month period runs from nomination. B. a party can be joined only after six months. C. joining at any time is prohibited. D. joining within six months from taking the seat is permitted without paragraph 2(3) disqualification.

Answer: D.

Explanation: [FACT] This is the exact distinction tested by the 2022 route.

Remedial MCQs 37-48 — Same Continuous Rotation

Q37. A member votes against a valid direction but receives condonation from the authorised party authority on day 12. The best conclusion is:

A. paragraph 2(1)(b) disqualification does not arise on that vote because condonation occurred within 15 days. B. disqualification is automatic at the moment of voting. C. only ECI can condone. D. condonation must occur before voting.

Answer: A.

Explanation: [FACT] Prior permission and post-vote condonation within 15 days are separate textual protections.

Q38. A group containing exactly one-third of a legislature party claims a split in 2026. It is:

A. protected by old paragraph 3. B. not protected because paragraph 3 stands omitted. C. automatically a merger. D. protected if the Governor agrees.

Answer: B.

Explanation: [FACT] The one-third split defence ended on 1 January 2004.

Q39. Two-thirds of a legislature party announce that they have “merged”, while the original party denies any merger. The best exam answer is:

A. they are automatically protected. B. they are automatically criminals. C. apply paragraph 4’s exact original-party and deeming text and identify the unresolved interpretive controversy. D. ECI must disqualify them.

Answer: C.

Explanation: [LIMIT] A categorical numerical shortcut would erase the legal controversy.

Q40. A court is asked to stop the Speaker from deciding merely because an adverse decision is feared. The Kihoto baseline is:

A. automatic injunction. B. ECI reference. C. Governor’s permission. D. no ordinary quia timet intervention before decision.

Answer: D.

Explanation: [FACT] Courts generally do not pre-empt the constitutionally assigned adjudicator.

Q41. A Speaker sits on a petition until the Assembly term is nearly over. Which chain is most relevant?

A. *Rajendra Singh Rana* -> *Keisham* -> judicial direction against disabling inaction. B. Article 352 -> emergency. C. ECI Symbols Order only. D. parliamentary privilege exclusively.

Answer: A.

Explanation: [FACT] Delay cannot be used to frustrate the Schedule’s constitutional objective.

Q42. A disqualified member wins a by-election before the old term ends. The 91st-Amendment office disability:

A. necessarily lasts for life. B. ends on declared re-election if that occurs earlier than original term expiry. C. becomes criminal punishment. D. is decided by the party whip.

Answer: B.

Explanation: [FACT] Articles 75(1B), 164(1B) and 361B use the earlier-event formula.

Q43. An expelled member joins another political party. The most relevant authority is:

A. *Kesavananda Bharati*. B. *Bommai*. C. *G. Viswanathan*. D. *Minerva Mills*.

Answer: C.

Explanation: [FACT] Deemed original-party belonging continues for Tenth Schedule purposes.

Q44. Which proposition is outside Subhash Desai?

A. political party appoints the Whip. B. Speaker and ECI tracks may proceed concurrently. C. split defence is unavailable. D. the Supreme Court itself disqualified every disputed member.

Answer: D.

Explanation: [LIMIT] The Court left first-instance disqualification to the Speaker.

Q45. The best way to write paragraph 7 is:

A. "It textually bars courts, but *Kihoto* invalidated it for want of State ratification." B. "It is fully operative." C. "It was deleted by Parliament." D. "It concerns merger."

Answer: A.

Explanation: [FACT] This preserves both text and legal effect.

Q46. A proposal to vest defection decisions in the President/Governor on ECI advice would:

A. describe existing paragraph 6. B. require legal/constitutional change and mirrors the Articles 103/192 model. C. automatically solve every bias concern. D. be implemented by a party whip.

Answer: B.

Explanation: [ANALYSIS] [LIMIT] It shifts institutional risk; it is not current law.

Q47. Which reform most directly addresses loss of ordinary legislative deliberation?

A. broader whips. B. longer Speaker delay. C. limiting binding whips to survival/core votes. D. making defection criminal.

Answer: C.

Explanation: [ANALYSIS] It protects necessary stability while restoring issue-wise judgment.

Q48. The best final verdict on the law is:

A. wholly useless. B. perfectly effective. C. unconstitutional in its entirety. D. justified in principle but weakened by broad whips, group/resignation routes and partisan delay.

Answer: D.

Explanation: [ANALYSIS] A graded verdict recognises both stability gains and design failures.

Visual 73 — Solved-Mains Evidence Bank

Issue	Constitutional anchor	Case/reform anchor
grounds	paragraph 2	<i>Ravi S. Naik</i>
merger	paragraph 4	<i>Rajendra Singh Rana</i> analogy; current controversy
Speaker	paragraph 6	<i>Kihoto</i> , <i>Keisham</i>
resignation	Articles 101/190	<i>Shrimanth</i>
whip authority	paragraph 2(1)(b)	<i>Subhash Desai</i>
office consequence	75(1B), 164(1B), 361B	91st Amendment
reform	constitutional amendment	Goswami, Law Commission, <i>Keisham</i>

Caption: Each model answer should select only evidence that advances its thesis.

Original Mains 1 — Grounds and Member Types (10 marks, 150 words)

Question: Explain the grounds of disqualification under the Tenth Schedule and the distinct treatment of independent and nominated members.

Model solution

Thesis: [FACT] Paragraph 2 uses different rules because party-ticket, independent and nominated members enter the House with different electoral relationships.

1. [CLAIM] A party member faces two grounds. [EVIDENCE] Paragraph 2(1)(a) covers voluntarily giving up membership; *Ravi S. Naik* permits inference from conduct. Paragraph 2(1)(b) covers contrary voting/abstention without prior permission and without condonation within 15 days. [ANALYSIS] The first protects continuing allegiance; the second enforces authorised voting discipline. [LIMIT] every speech or dissent is not a whip

breach.

2. [CLAIM] An independent member has the strictest joining rule. [EVIDENCE] Paragraph 2(2) disqualifies on joining any party after election. [ANALYSIS] The voter chose a non-party candidate. [LIMIT] no six-month window exists.
3. [CLAIM] A nominated member receives a limited choice period. [EVIDENCE] Paragraph 2(3) disqualifies only for joining after six months from taking the seat. [ANALYSIS] The text permits early political alignment. [LIMIT] the clock does not run from nomination.

Verdict: The Schedule protects the electoral identity through category-specific rules rather than one universal prohibition.

Why this earns marks: It states every ground, supplies the 15-day and six-month controls, and uses *Ravi S. Naik* with a qualification.

Original Mains 2 — Political Party and Legislature Party (10 marks, 150 words)

Question: Distinguish “political party” from “legislature party” under the Tenth Schedule. Why does the distinction matter?

Model solution

Thesis: [FACT] A political party is the organisational/electoral entity; a legislature party is its group of members within a particular House.

- [CLAIM] Electoral belonging flows from the political party. [EVIDENCE] Paragraph 2 deems an elected member to belong to the party that set the member up. [ANALYSIS] Voter mandate cannot be rewritten only by House-level numbers. [LIMIT] membership disputes still require evidence.
- [CLAIM] Voting authority flows from the political party. [EVIDENCE] Paragraph 2(1)(b) recognises its direction or an authorised person's direction; *Subhash Desai* holds that the political party appoints the Whip and Leader. [ANALYSIS] A factional legislature majority cannot manufacture a rival whip. [LIMIT] the Speaker must identify authorisation through inquiry and party rules.
- [CLAIM] Legislature-party numbers matter in paragraph 4. [EVIDENCE] two-thirds agreement triggers the merger deeming rule. [ANALYSIS] This creates the present organisational-versus-numerical controversy. [LIMIT] two-thirds is not a free-standing right to defect.

Verdict: The distinction protects party mandate while exposing the unresolved tension in the merger exception.

Why this earns marks: It defines, applies and qualifies the distinction through both paragraph 2 and paragraph 4.

Original Mains 3 — Speaker as Adjudicator (10 marks, 150 words)

Question: Evaluate the constitutional position of the Speaker as the adjudicator of defection petitions.

Model solution

Thesis: [FACT] Paragraph 6 entrusts the Speaker/Chairman with first-instance decision, but judicial doctrine treats that role as adjudicatory rather than politically immune.

1. [CLAIM] The arrangement keeps the question within the House. [EVIDENCE] Paragraph 6 declares the decision final and provides a House-elected substitute when the Speaker is personally concerned. [ANALYSIS] institutional familiarity may aid speed. [LIMIT] continued party affiliation creates perceived bias.
2. [CLAIM] Finality is constitutionally controlled. [EVIDENCE] *Kihoto Hollohan* classifies the Speaker as a tribunal and permits review for constitutional breach, mala fides, natural-justice violation and perversity. [ANALYSIS] legality survives the finality clause. [LIMIT] review is not a full appeal.
3. [CLAIM] delay is a structural weakness. [EVIDENCE] *Keisham* identifies an ordinary three-month outer limit and proposes an independent tribunal. [ANALYSIS] delayed justice can alter government survival. [LIMIT] no express Schedule deadline or tribunal amendment exists.

Verdict: The current model is legally reviewable but institutionally fragile; neutral, time-bound adjudication is the stronger design.

Why this earns marks: It balances constitutional text, judicial control, practical bias and reform within the word limit.

Original Mains 4 — Kihoto and Judicial Review (15 marks, 250 words)

Question: “Kihoto Hollohan saved the anti-defection law from both invalidation and unaccountability.” Discuss.

Model solution

Thesis: [FACT] *Kihoto* upheld the central Tenth Schedule design while invalidating its attempted total ouster of courts, producing a controlled compromise between House adjudication and constitutional review.

Saved from invalidation

- [CLAIM] The majority rejected the argument that vesting power in the Speaker necessarily destroyed the basic structure. [EVIDENCE] It emphasised the high constitutional office and retained paragraph 6. [ANALYSIS] This preserved the 52nd Amendment's anti-defection mechanism. [LIMIT] the minority's bias concern later informed reform debate.

Saved from unaccountability

- [CLAIM] Paragraph 7 could not validly exclude Supreme Court/High Court jurisdiction. [EVIDENCE] It affected Articles 136, 226 and 227 but lacked ratification by half the States under Article 368(2). [ANALYSIS] amendment procedure protected federal participation and judicial review. [LIMIT] paragraph 7 remains printed but legally invalid.
- [CLAIM] The Speaker is a tribunal. [EVIDENCE] Review survives for constitutional mandate violation, mala fides, natural-justice breach and perversity. [ANALYSIS] a political office exercising judicial power must give a legally defensible order. [LIMIT] review is jurisdictional, not a routine merits appeal.
- [CLAIM] First-instance authority remains with the Speaker. [EVIDENCE] ordinary quia timet/interlocutory intervention is restricted. [ANALYSIS] this respects constitutional allocation. [LIMIT] *Keisham* later clarifies that courts may aid prompt decision against inaction.

Verdict: *Kihoto* did not perfect the law; it constitutionalised accountability around a structurally partisan decider. Later delay cases expose why judicial review is necessary but not sufficient.

Why this earns marks: It answers both halves of the quotation, explains ratification, review grounds and timing, and adds a measured limitation.

Original Mains 5 — Merger Exception (15 marks, 250 words)

Question: “The merger exception risks converting a prohibition on defection into a numerical licence for wholesale defection.” Critically examine.

Model solution

Thesis: [FACT] Paragraph 4 protects genuine party merger, but its two-thirds deeming rule can be used to present coordinated legislative migration as constitutional realignment.

Why protection exists

- [CLAIM] Parties may genuinely reorganise. [EVIDENCE] Paragraph 4 protects members accepting another/new party and those rejecting the merger and functioning separately. [ANALYSIS] A rigid individual-only rule could punish authentic collective realignment. [LIMIT] protection must remain tied to merger, not convenience.

Why it becomes a loophole

- [CLAIM] The threshold rewards group engineering. [EVIDENCE] not less than two-thirds of the legislature party triggers the deeming rule after the one-third split defence was deleted. [ANALYSIS] actors rationally aggregate numbers rather than defect individually. [LIMIT] threshold alone does not answer the original-political-party language.
- [CLAIM] Organisational mandate may be bypassed. [EVIDENCE] Paragraph 4(1) speaks of the original political party merging; *Subhash Desai* elsewhere stresses political-party authority over mere legislature factions. [ANALYSIS] voter choice is weakened if House numbers can rewrite party identity. [LIMIT] paragraph 4(2)'s deeming fiction creates a genuine interpretive dispute.
- [CLAIM] *Rajendra Singh Rana* supplies a cautionary analogy. [EVIDENCE] under old paragraph 3, legislator numbers did not themselves prove an original-party split. [ANALYSIS] organisational reality matters. [LIMIT]

that case interpreted the now-omitted split rule, not a final modern merger rule.

Reform: Clarify organisational consent/evidence, redesign or remove the defence, and protect only transparent, genuine mergers followed by electoral accountability.

Verdict: Paragraph 4 should remain an exception proved strictly, not a numerical safe harbour presumed automatically.

Why this earns marks: It preserves the textual controversy, gives both rationales and avoids claiming an unverified 2026 settlement.

Original Mains 6 — Resignation and Office Bars (15 marks, 250 words)

Question: Analyse the relationship between resignation, defection disqualification and the office disabilities introduced by the 91st Amendment.

Model solution

Thesis: [FACT] Resignation and disqualification are distinct vacancy mechanisms; the 91st Amendment prevents a person adjudged a defector from immediately converting seat loss into ministerial or remunerative office.

Resignation does not erase prior defection

- [CLAIM] Liability is tied to the defection date. [EVIDENCE] *Shrimanth Balasaheb Patil* holds that a later resignation does not vaporise the taint or terminate Speaker jurisdiction. [ANALYSIS] otherwise a member could defeat paragraph 2 by timing a resignation. [LIMIT] the Speaker still must prove the ground through fair process.

Disqualification does not create an unlimited election ban

- [CLAIM] The Speaker's power is text-bound. [EVIDENCE] *Shrimanth* struck down the direction barring re-election until the Assembly term ended. [ANALYSIS] desirability cannot supply a qualification absent from the Constitution/RPA. [LIMIT] re-election does not retrospectively validate the earlier conduct.

91st-Amendment disabilities

- [CLAIM] Articles 75(1B) and 164(1B) bar ministerial appointment; Article 361B bars a remunerative political post. [EVIDENCE] each runs from disqualification until original term expiry or earlier declared re-election. [ANALYSIS] this targets the office reward that can motivate defection. [LIMIT] it is not criminal punishment or lifetime exclusion.

Verdict: The scheme now follows a calibrated sequence: adjudicate past defection despite resignation, vacate the seat, impose temporary office disability, but preserve the electorate's power to return the candidate.

Why this earns marks: It separates three legal mechanisms, uses the controlling case and states the exact duration formula.

Original Mains 7 — Effectiveness and Reform (20 marks, 300 words)

Question: Has the anti-defection law strengthened parliamentary democracy or reduced legislators to agents of party leadership? Critically examine and suggest reforms.

Model solution

Thesis: [ANALYSIS] The Tenth Schedule strengthened government stability and party-linked electoral accountability, but its broad whip, merger incentives and partisan adjudication weakened deliberative representation. It is a necessary principle with an overbroad and poorly enforced design.

Democratic gains

1. [CLAIM] It raises the cost of opportunistic floor-crossing. [EVIDENCE] the 52nd Amendment constitutionalised seat loss for voluntary abandonment and whip defiance. [ANALYSIS] this protects the voter from office-driven mandate trading. [LIMIT] it cannot eliminate incentives.
2. [CLAIM] It stabilises responsible government. [EVIDENCE] confidence arithmetic becomes more predictable. [ANALYSIS] ministries can implement programmes. [LIMIT] stability without scrutiny may become executive dominance.

3. [CLAIM] It recognises political parties as constitutional actors. [EVIDENCE] candidate-setting, membership and directions all refer to the political party. [ANALYSIS] party labels shape electoral choice. [LIMIT] party leadership may be internally undemocratic.

Democratic costs

1. [CLAIM] Broad whips chill judgment. [EVIDENCE] paragraph 2(1)(b) is not confined to confidence or money votes. [ANALYSIS] legislators become numbers rather than deliberators. [LIMIT] core survival votes justify stronger discipline.
2. [CLAIM] Group and resignation routes displace individual defection. [EVIDENCE] paragraph 4 and *Shrimanth* reveal merger/resignation strategies. [ANALYSIS] the law redirects rather than removes defections. [LIMIT] genuine merger and resignation remain legitimate constitutional possibilities.
3. [CLAIM] Speaker timing can determine political outcomes. [EVIDENCE] *Kihoto*, *Rajendra Singh Rana*, *Keisham* and the 2025 Telangana direction. [ANALYSIS] delayed adjudication can make final review hollow. [LIMIT] complex cases may require justified extension.

Reforms

- narrow binding whips to confidence/no-confidence, money/supply and clearly defined core commitments;
- create an independent tribunal or a carefully insulated President/Governor-on-ECI-advice model;
- enact a fixed deadline with reasoned exceptional extension;
- redesign paragraph 4 to require transparent proof of genuine organisational merger;
- require recorded party authorisation and strengthen internal party democracy;
- preserve judicial review and natural justice.

Verdict: Anti-defection should protect the mandate at moments of government survival, not extinguish representative judgment throughout legislative life.

Why this earns marks: It balances achievement and harm, uses eight named anchors, explains mechanisms and offers matched reforms.

Original Mains 8 — Maharashtra Institutional Conflict (20 marks, 300 words)

Question: Using *Subhash Desai*, analyse how the Tenth Schedule distributes authority among the political party, legislature party, Speaker, Election Commission, Governor and courts.

Model solution

Thesis: [FACT] *Subhash Desai* rejects a single-institution solution to a party split. It assigns each institution a legally bounded function and prevents legislative headcount from silently replacing political-party authority.

Political party and legislature party

- [CLAIM] The political party controls authorised legislative direction. [EVIDENCE] it appoints the Whip and Leader; paragraph 2 links the member to the party that set the candidate up. [ANALYSIS] a factional legislature majority cannot self-authorise a rival whip. [LIMIT] the Speaker must determine authentic authority through the party constitution and evidence.
- [CLAIM] Legislature-party numbers remain relevant but not sovereign. [EVIDENCE] paragraph 4 uses the two-thirds threshold. [ANALYSIS] numbers serve a defined constitutional defence. [LIMIT] they do not automatically settle party identity.

Speaker and ECI

- [CLAIM] The Speaker decides paragraph 6 petitions. [EVIDENCE] *Kihoto* tribunal doctrine and *Subhash Desai* first-instance rule. [ANALYSIS] membership liability remains House-linked. [LIMIT] decisions must be timely and reviewable.
- [CLAIM] ECI decides the separate Symbols Order dispute. [EVIDENCE] *Subhash Desai* permits concurrent proceedings. [ANALYSIS] symbol recognition and defection ask different legal questions. [LIMIT] neither result mechanically controls the other.

Governor and courts

- [CLAIM] The Governor may use constitutionally relevant objective material for government formation/floor test, but cannot decide defection. [EVIDENCE] the impugned floor-test call lacked objective material; later government invitation after vacancy was upheld. [ANALYSIS] majority testing cannot become an indirect party-recognition mechanism. [LIMIT] facts and timing matter.
- [CLAIM] Courts police boundaries. [EVIDENCE] judicial review remains; the Court did not ordinarily decide disqualifications first instance. [ANALYSIS] constitutional supervision preserves distributed authority. [LIMIT] *Nabam Rebia* correctness remains referred.

Verdict: The judgment's enduring principle is jurisdictional discipline: political authority, legislative grouping, membership adjudication, symbol recognition and government formation must interact without collapsing into one another.

Why this earns marks: It addresses all six institutions, uses exact holdings and preserves the unresolved *Nabam Rebia* issue.

Final Consolidated Register Notes — Anti-Defection Law

A. Constitutional Spine and Dates

Visual 74 — One-Page Constitutional Chain

52ND AMENDMENT ACT, 1985
dated 15 Feb 1985; effective 1 Mar 1985

|
Articles 101 / 102 / 190 / 191

|
TENTH SCHEDULE

|
91ST AMENDMENT ACT, 2003
effective 1 Jan 2004

|
paragraph 3 omitted
Articles 75(1A), 75(1B), 164(1A), 164(1B), 361B

- [FACT] 52nd created the law; 91st tightened it.
- [FACT] Articles 102(2) and 191(2) contain the defection ground.
- [FACT] Articles 101 and 190 connect disqualification to vacancy.
- [FACT] No criminal liability or permanent political disqualification is created.

B. Exact Paragraph Recall

Visual 75 — Paragraph Mnemonic

1 DEFINE
2 DISQUALIFY
3 DELETED
4 MERGER
5 CHAIR EXEMPTION
6 DECIDER
7 COURT-BAR TEXT, INVALID
8 RULES

- [FACT] Paragraph 1: House, legislature party, original political party.
- [FACT] Paragraph 2: party, independent and nominated member grounds.
- [FACT] Paragraph 4: original-party merger plus two-thirds deeming rule.
- [FACT] Paragraph 5: exact listed presiding offices and conditions.
- [FACT] Paragraph 6: Speaker/Chairman; House-elected member if presiding officer concerned.
- [FACT] Paragraph 7: printed but invalid under *Kihoto*.
- [FACT] Paragraph 8: records, reports and procedure.

C. Grounds in One View

Visual 76 — Member-Type Recall

Member	Trigger
party member	voluntarily gives up membership
party member	contrary vote/abstention; no prior permission; no condonation within 15 days
independent	joins any party after election
nominated	joins after six months from taking seat

- [FACT] *Ravi S. Naik*: conduct can prove voluntarily giving up.
- [LIMIT] one dissenting speech is not automatically defection.
- [FACT] political party or its authorised person/authority issues the direction.
- [FACT] nominated member has the six-month freedom; independent does not.

D. Party Structure and Whip

Visual 77 — Authority Recall

POLITICAL PARTY
sets up candidate + authorises Whip/Leader + issues direction
|
LEGISLATURE PARTY
all members of that party in the House
|
MEMBER
votes under paragraph 2 discipline

- [FACT] *Subhash Desai*: political party, not legislature-party faction, appoints Whip and Leader.
- [FACT] Speaker identifies authorisation using party constitution and inquiry.
- [LIMIT] headcount alone does not identify the real political party.
- [ANALYSIS] Current law allows broad whips; narrowing them is a reform proposal.

E. Merger and Split

Visual 78 — Merger Control Card

SPLIT: paragraph 3 omitted; one-third defence dead

MERGER:
original political party merges
+
not less than 2/3 legislature party agree
+
accepting members and rejecting separate group protected

- [LIMIT] Never write “two-thirds MLAs may automatically defect”.
- [FACT] Paragraph 4(1) and 4(2) must be read together.
- [ANALYSIS] Organisational-merger and deeming-fiction readings remain contested.
- [LIMIT] *Rajendra Singh Rana* is a cautionary analogy from former split law, not a final modern paragraph 4 settlement.
- [CURRENT] Reported 2026 litigation is not described with unverified bench/deadline details.

F. Presiding Officer and Procedure

Visual 79 — Adjudication Route

petition + material facts + documents
|
notice / comments / hearing
|
Speaker or Chairman as tribunal
|
reasoned order
|
limited judicial review

- [FACT] Paragraph 5 exemption is limited to listed presiding offices.
- [FACT] If petition concerns Speaker/Chairman, House elects deciding member.
- [FACT] House rules cannot override the Schedule.
- [FACT] Reasonable opportunity and natural justice are compulsory.
- [FACT] ECI and Governor do not decide paragraph 6 petitions.

G. Judicial Review and Delay

Visual 80 — Kihoto–Keisham Chain

KIHOTO
Speaker = tribunal
review: constitutional breach / mala fides / natural justice / perversity
paragraph 7 invalid
|
RAJENDRA SINGH RANA
inaction cannot defeat law
|
KEISHAM
reasonable time; ordinarily 3 months; tribunal proposed
|
TELANGANA 2025
case-specific 3-month direction

- [LIMIT] The Schedule itself contains no express deadline.
- [FACT] Ordinary pre-decision/interlocutory intervention is restricted.
- [FACT] Courts can direct prompt decision; Speaker cannot nullify law by delay.
- [LIMIT] No later Telangana contempt warning is claimed without official verification.

H. Resignation, Expulsion and Consequences

Visual 81 — Exit-and-Consequence Sheet

Event	Controlled rule
resignation after prior defection	does not erase Speaker jurisdiction
Speaker-imposed term-long election ban	invalid under <i>Shrimanth</i>
party expulsion	not automatic disqualification; deemed belonging continues
seat vacancy	direct consequence of disqualification
minister/remunerative post	barred until term expiry or earlier declared re-election
criminal/lifetime penalty	none under Tenth Schedule

- [FACT] *Shrimanth*: prior taint does not vaporise on resignation.
- [FACT] *G. Viswanathan*: expulsion does not create independent status for Schedule purposes.
- [FACT] Articles 75(1B), 164(1B), 361B target office rewards.

I. Nabam Rebia and Subhash Desai

Visual 82 — Current Doctrine Card

NABAM REBIA:

Speaker constrained during pending removal notice

SUBHASH DESAI:

correctness referred to seven judges

political party appoints Whip/Leader

Speaker + ECI may proceed concurrently

split defence unavailable

Governor floor-test call required objective material

- [CURRENT] [LIMIT] No later official seven-judge merits ruling was verified for this package.
- [LIMIT] Do not claim *Subhash Desai* disqualified members or restored government.
- [FACT] Symbol and Tenth Schedule proceedings are separate.

J. Comparison Register

Visual 83 — Do Not Conflate

Question	Authority
Tenth Schedule disqualification	Speaker/Chairman
Article 102(1)/191(1), RPA question for sitting member	President/Governor on ECI opinion
party-symbol dispute	ECI
privilege	House
resignation	presiding officer under constitutional process
party expulsion	political party

K. Evaluation and Reform

Visual 84 — Final Balanced Verdict

PRINCIPLE WORTH RETAINING:

protect mandate + prevent office-driven floor-crossing

DESIGN NEEDING REPAIR:

broad whip + merger ambiguity + resignation incentives

+ partisan/delayed adjudication + weak party democracy

REFORM:

narrow whip + neutral tribunal + fixed timeline

+ merger redesign + reasoned party authorisation

- [ANALYSIS] Stability is strongest on confidence, money/supply and core programme votes.
- [ANALYSIS] Broad whips weaken scrutiny and internal party democracy.
- [ANALYSIS] Independent adjudication should be time-bound and reviewable.
- [LIMIT] Tribunal, narrow-whip and merger-redesign proposals are not current law.

L. PYQ and Answer-Writing Recall

Visual 85 — Last-Page Exam Spine

PRELIMS:

52nd / 91st -> paragraphs -> 15 days -> 6 months -> 2/3
-> Speaker -> Kihoto -> no ECI

MAINS:

purpose -> exact mechanism -> case doctrine -> institutional incentive
-> counter-argument -> reform -> graded verdict

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

- [FACT] 2022 routed demand: nominated member's six-month rule; key unavailable.
- [FACT] 2025 routed demand: political-party concept; no answer letter claimed.
- [FACT] 2023 cross-owned Mains: presiding officers and impartiality.
- [ANALYSIS] Preferred verdict: anti-defection is justified in principle but must be narrowed, neutrally adjudicated and promptly decided.